

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 24-09

TZ SSE Buyer, LLC, Complainant v. COSCO Shipping Lines Co., LTD, Respondent

JOINT MOTION TO EXTEND DISCOVERY AND BRIEFING DEADLINES

Complainant TZ SSE Buyer, LLC (“Complainant”) and Respondent COSCO Shipping Lines Co., LTD (“Respondent”) (collectively, the “Parties”) jointly move, pursuant to 46 C.F.R. § 502.141(l), to extend the close of discovery and briefing schedule to allow the Parties to complete written discovery, document production, and depositions, and in support thereof, state as follows:

1. On November 4, 2024, the Presiding Officer entered the First Amended Scheduling Order [Document No. 28] setting the following deadlines:

Task	Deadline
Supplemental Initial Disclosures Due	November 18, 2024
Respondent to identify rebuttal expert witness, if any	November 19, 2024
Respondent to serve responses to Complainant’s initial written discovery requests	December 3, 2024
Complainant to serve expert report	December 6, 2024
Respondent to serve rebuttal reports	January 13, 2025
Last day to serve supplemental written discovery requests	January 17, 2025
Discovery closed	March 17, 2025

Complainants' Brief, Proposed Findings of Fact, and Appendix	April 17, 2025
Respondent's Opposition Brief, Response to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix	May 19, 2025
Complainants' Reply Brief and Responses to Proposed Findings of Fact	June 2, 2025

2. In accordance with the First Amended Scheduling Order, the Parties have exchanged (1) supplemental initial disclosures, (2) supplemental written discovery requests, and (3) expert reports.

3. Respondent has served responses to Complainant's initial and supplemental written discovery requests, as well as an initial set of documents responsive to Complainant's requests. However, Complainant has identified deficiencies in both Respondent's discovery responses and its initial document production.

4. On February 20, 2025, the Parties met and conferred to discuss outstanding discovery matters. During this meeting, the Parties agreed that additional time was needed to address these outstanding discovery issues, including Respondent's supplementation of its responses to Complainant's written discovery requests and document production.

5. Respondent has indicated its intention to file a motion for partial summary judgment regarding certain shipments listed in Complainant's damages spreadsheet, asserting that these shipments fall outside the Commission's jurisdiction. Respondent believes this motion may impact the scope of discovery and its outstanding discovery obligations.

6. To accommodate Respondent's motion for partial summary judgment, allow for the completion of outstanding discovery—including depositions—and permit Respondent to

supplement its discovery responses and document production, the Parties request an extension of the discovery and briefing deadlines.

7. The Parties propose the following revised schedule:

Task	Deadline
Respondent's Motion for Summary Judgment on Jurisdictional Grounds	March 11, 2025
Complainant's Response to Respondent's Motion for Summary Judgment	March 26, 2025
Respondent's Reply to Complainant's Response to Respondent's Motion for Summary Judgment	April 2, 2025
Discovery Closes	April 28, 2025
Complainants' Brief, Proposed Findings of Fact, and Appendix	May 30, 2025
Respondent's Opposition Brief, Response to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix	June 30, 2025
Complainants' Reply Brief and Responses to Proposed Findings of Fact	July 14, 2025

8. Pursuant to 46 CFR § 502.141(h), counsel for Complainant conferred with counsel for Respondent. The Parties believe that the requested extension will facilitate the resolution of outstanding discovery issues and ensure that both Parties have adequate time to complete necessary discovery and briefing.

WHEREFORE, the Parties respectfully request that the Presiding Officer grant this Joint Motion to Extend Discovery and Briefing Deadlines and that the following revised schedule be adopted:

- i. Respondent's Motion for Summary Judgment on Jurisdictional Grounds – **March 11, 2025;**
- ii. Complainant's Response to Respondent's Motion for Summary Judgment – **March 26, 2025;**
- iii. Respondent's Reply to Complainant's Response to Respondent's Motion for Summary Judgment – **April 2, 2025;**
- iv. Discovery Closes – **April 28, 2025;**
- v. Complainants' Brief, Proposed Findings of Fact, and Appendix – **May 30, 2025;**
- vi. Respondent's Opposition Brief, Response to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix – **June 30, 2025;** and
- vii. Complainants' Reply Brief and Responses to Proposed Findings of Fact – **July 14, 2025.**

Dated: March 6, 2025

Respectfully jointly submitted,

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